

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

July 13, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Ms. Case, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Ms. Ash and Mr. Collins. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Case, and pursuant to support received by Mr. Pierson and Mr. Brown, agenda item #15 was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Pierson and Mr. Brown, agenda item #25(c) was removed from the Consent Agenda. Mr. Spiker moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JUNE 22, 2009.
Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JULY 6, 2009.
Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present.

Mayor Kaysen opened a public hearing to receive comments and input on the proposed sale of real property owned by the City of Cheyenne, described generally as the northerly 85 ft. less the easterly 10 ft. of Lot 2, Block One, Bike Trail Addition, Cheyenne, Laramie County, WY, containing approximately 21,532 sq. ft., or 0.49431 acres, more or less (generally located southeast of east 2nd St. and Russell Ave. Intersection, extending to the west side of Morrie Ave.) to Frontier Refining, Inc., which sale will benefit the economic development of the municipality pursuant to Wyo. Stat. §15-1-112 (b). Estimated appraised value of said property to be sold is \$77,500.00. There being no comments or discussion and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR LOT 1,

BLOCK ONE, PAT GRIFFIN PARK AND FROM LI LIGHT INDUSTRIAL DISTRICT TO P PUBLIC DISTRICT FOR LOT 2, BLOCK ONE, PAT GRIFFIN PARK, CHEYENNE, WYOMING (LOCATED WEST OF THE INTERSECTION OF MISSILE DRIVE AND WESTLAND ROAD).” Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present. (#3866)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF NORTHWEST QUARTER OF THE SOUTHWEST QUARTER (NW 1/4 SW 1/4) OF SECTION 20, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (GENERALLY DESCRIBED AS FOLLOWS: A TRACT OF LAND LOCATED EAST OF POWDERHOUSE ROAD, NORTH OF AND ADJACENT TO LIFE CARE CENTER).” Mr. Brown moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR LIFE CARE CENTER, 2ND FILING, A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼SW¼ OF SECTION 20, T.14N., R.66W., 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF AND ADJACENT TO POWDERHOUSE ROAD, NORTH OF THE EXISTING LIFE CARE CENTER)” -- referred to Public Services Committee (sponsor - Mr. Brown).

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR PAT GRIFFIN PARK, A REPLAT OF LOTS 3 & 4, BLOCK 2, GRIFFIN ADDITION; LOT 1, BLOCK 2, REPLAT OF WESTLAND SUBDIVISION; A PORTION OF LOT 1, BLOCK 1, REPLAT OF WESTLAND SUBDIVISION; A PORTION OF VACATED COUNTY ROAD 51; A PORTION OF THE GOVERNMENT LOT 5 OF SECTION 36, T.14N., R.67W., 6TH P.M., AND A PORTION OF FORMER D.A. RUSSELL MILITARY RESERVATION, CHEYENNE, WYOMING (LOCATED WEST OF THE INTERSECTION OF MISSILE DRIVE AND WESTLAND ROAD).” Mr. Brown moved to adopt with staff recommendation #1, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. (#5143)

[CA] “A RESOLUTION WHEREBY THE GOVERNING BODY OF THE CITY OF CHEYENNE AUTHORIZES A SPECIAL CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT ELECTION AS PROVIDED BY WYO. STAT. §15-9-217 (B) AND (C) WHICH, UPON AFFIRMATIVE MAJORITY VOTE OF THE QUALIFIED VOTERS WITHIN THE DISTRICT, WILL REAUTHORIZE A SPECIAL ASSESSMENT OF TEN (10) MILLS UPON NON-RESIDENTIAL COMMERCIAL PROPERTIES WITHIN THE DISTRICT FOR A PERIOD OF FOUR (4) YEARS.” Motion (per Consent Agenda) carried. (#5144)

[CA] “A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE JULY 2009 APPLICATION FOR THE COUNTYWIDE

CONSENSUS BLOCK GRANT (2009-2010 FISCAL BIENNIUM) TO THE STATE LOAN AND INVESTMENT BOARD.” Motion (per Consent Agenda) carried. (#5145)

“A RESOLUTION ACKNOWLEDGING RECEIPT OF AND APPROVING THE ‘EAST PERSHING BOULEVARD CORRIDOR AND INTERSECTIONS PLAN’ PREPARED BY AYRES ASSOCIATES FOR THE CHEYENNE METROPOLITAN PLANNING ORGANIZATION.” Frank Cole, Cole Shopping Center, expressed concerns with potential future increased traffic on East Pershing; designing the proposed roundabout to accommodate semi-trucks delivering goods to Cole Shopping Center, and residential parking issues on Pershing Blvd., west of the Converse intersection, and recommended reviewing plans to further widen Pershing. John Fafoutakis spoke in opposition to a roundabout traffic design at the Pershing/Converse intersection area, citing pedestrian crossing and traffic safety concerns. Gene MacDonald, Ayers and Associates, provided information on modern roundabout traffic designs and safety features resulting in decreased vehicular accidents, pedestrian safety, and slower traffic speeds. He explained the difference between traffic circles and modern roundabouts, and discussed corridor planning elements involving nearby residential properties and right-of-way and access issues. He submitted a spreadsheet (on file with City Clerk’s office) containing the potential cost of property acquisitions relative to additional right-of-way to realign and widen E. Pershing Blvd. Upon inquiry, Mr. MacDonald reviewed the elements contained in engineering and traffic data that were studied relative to modern roundabout vs. standard intersection designs. Pacomio Sandoval expressed concerns with a roundabout located in Rawlins and driver navigational difficulties, and suggested the item be postponed and that Council members travel to Rawlins to view the problematic intersection. Mr. Brown moved to adopt, seconded by Mr. Pierson. Upon inquiry, Mr. MacDonald reviewed the physical placement of pedestrian access/crossings in modern roundabouts, stating they are usually “pulled back” from the circle; addressed possible encroachment on some residential properties that should be addressed during final design work, and reviewed potential incorporation of turn lanes, and effect of the project on sidewalks/driveways in the area. Comments followed on a modern roundabout concept, widening of the roadway and working with residents who may be affected, West Pershing Blvd. issues, and non-feasibility, due to cost, of the City purchasing several properties in the area. Upon inquiry, Mr. MacDonald advised the design plan is 35% complete and explained, due to unknown factors and details, by the time a final design is accomplished it often times has multiple changes from the preliminary design. Motion carried. Voting “yes” – all members of the governing body present. Under other City business, Ms. Case commented that she did not consider this agenda item to be a routine item and that it should not have been placed on the Consent Agenda. (#5146)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR OF THE CITY OF CHEYENNE TO EXECUTE A MEMORANDUM OF UNDERSTANDING FOR THE TRADE OF REAL PROPERTY OWNED BY THE CITY OF CHEYENNE TO CHEYENNE HOTEL INVESTORS, LLC, AND CHEYENNE HOTEL INVESTORS, II, LLC, DESCRIBED AS A PARCEL OF LAND SITUATED IN A PORTION OF THE REPLAT OF WESTLAND SUBDIVISION, SAID SUBDIVISION BEING FURTHER DESCRIBED AS A PORTION OF LOT 1, BLOCK ONE, A PORTION OF LOT 1, BLOCK TWO AND A PORTION OF VACATED COUNTY ROAD 51, CONSISTING OF APPROXIMATELY 51,423 SQUARE FEET (ESTIMATED APPRAISED VALUE \$97,703.70), FOR REAL PROPERTY OWNED BY CHEYENNE HOTEL INVESTORS, LLC, AND CHEYENNE HOTEL INVESTORS, II, LLC, TO THE CITY OF CHEYENNE, DESCRIBED AS A PARCEL OF LAND SITUATED IN A PORTION OF LOT 4, BLOCK TWO, GRIFFIN ADDITION; AND AN

ADJOINING PORTION OF GOVERNMENT LOT 5 OF SECTION 36, T. 14 N., R. 67 W., 6TH P.M., LARAMIE COUNTY, LYING GENERALLY SOUTH AND WEST OF SAID LOT 4, ALL CONSISTING OF APPROXIMATELY 75,682 SQUARE FEET (ESTIMATED APPRAISED VALUE \$75,901.45), PLUS THE SUM OF \$21,802.25 WHICH REPRESENTS THE DIFFERENCE BETWEEN THE VALUE OF THE LAND TO BE EXCHANGED BETWEEN THE PARTIES, SAID FUNDS TO BE USED FOR DESIGN AND CONSTRUCTION OF AMENITIES FOR PAT GRIFFIN PARK (GENERALLY LOCATED WEST OF WESTLAND ROAD AND EAST OF I-25)." Motion (per Consent Agenda) carried. (#5147/MOU #5418)

[CA] "A RESOLUTION IN SUPPORT OF THE ALLOCATION OF FISCAL YEAR 2008-2009 WARD I CONTINGENCY FUNDS TO THE CITY OF CHEYENNE TRANSIT PROGRAM FOR BUS TOKENS AND TO THE CITY OF CHEYENNE BOTANIC GARDENS FOR COSTS ASSOCIATED WITH THE CHILDREN'S GARDEN" -- referred to Finance Committee (sponsor - Ms. Case).

[CA] "A RESOLUTION - AUTHORIZING THE MAYOR TO SIGN A MEMORANDUM OF UNDERSTANDING WITH LARAMIE COUNTY TO APPLY FOR THE EDWARD BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT PROGRAM" -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION TO AMEND THE CITY OF CHEYENNE ANNUAL ACTION PLANS FOR FISCAL YEARS 2007-2008, 2008-2009 AND REALLOCATE FUNDING FOR TWO COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) PROJECTS" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR THE POINT, 4TH FILING, A REPLAT OF LOTS 11,12 & 13, BLOCK 14, THE POINTE, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF THE INTERSECTION OF DANIEL COURT AND MIRACLE PARKWAY)" -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION AMENDING RESOLUTION NO. 4751 OUTLINING ELECTION PROCEDURES AND GUIDELINES FOR A CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTION FOR THE PURPOSE OF SUBMITTING TO QUALIFIED DISTRICT VOTERS A BALLOT QUESTION PROVIDING FOR A SPECIAL PROPERTY ASSESSMENT AS AUTHORIZED BY WYO. STAT. §15-9-217 (B) AND (C)" -- referred to Finance Committee (sponsor - Mr. Collins).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] Preliminary Plat for Windmill Road, 2nd Filing, a portion of the NE¼ of Section 28, T.14N., R.66W, 6th P.M, Cheyenne, Wyoming (located at the southeast corner of the intersection of Dell Range Boulevard. and Windmill Road)" -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

Agreement between the City of Cheyenne and Clean Harbors Environmental Services, Inc., for Hazardous Waste Disposal Services, Cheyenne Household Hazardous Waste Facility. Reporting for Finance Committee, Mr. Valdez moved to approve in an amount not to exceed \$200,000.00, seconded by Ms. Broyles. Mr. Valdez moved to amend wording in paragraph 12, Termination, from 15 to 30 days, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#5414)

Contract between the City of Cheyenne and Laramie County School District No. 1 for school resource officers for the 2009-2010 school year. Mr. Valdez moved to approve in an amount not to exceed \$339,494.00, seconded by Ms. Broyles. Mr. Valdez moved to amend paragraph #12(a) by inserting Elementary Schools enabling the paragraph to read as follows: “Seven officers and one Sergeant stationed variously at High Schools, Jr. High Schools, Elementary Schools, and DARE Programs within the District,” seconded by Ms. Broyles. Upon inquiry, Chief Bob Fecht, Cheyenne Police Department, clarified the amendment would not affect the number of currently assigned school resource officers. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#5415)

[CA] Cooperative Agreement between the City of Cheyenne and Laramie County Board of Commissioners for the funding of a pavement management inventory. Motion (per Consent Agenda) carried (amount not to exceed \$121,400.00). (#5416)

[CA] Professional Services Agreement between the City of Cheyenne and IMS Infrastructure Management Services, LLC for Pavement Performance Data. Motion (per Consent Agenda) carried (amount not to exceed \$131,000.00). (#5417)

[CA] Agreement between the City of Cheyenne, Attorney’s Office, and Bill G. Hibbler for professional legal services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department and the Cheyenne Regional Airport Board for law enforcement services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Tina Henderson for crime victim assistance services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson for crime victim assistance services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Architects Design Group, Inc. and The Center for Public Safety, Inc. for a detailed spatial needs assessment for current and future requirements for proposed new facility to include the Police Department, Emergency Communications, Fire Administration and Laramie County Emergency Management -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification #1 to Contract #5357 between the City of Cheyenne and S&S Builders, LLC for additional services for the Carey Avenue Extension Project (SLIB funding). Motion (per Consent Agenda) carried (amount not to exceed \$30,000.00). (#5357)

[CA] Contract Modification #2 to Contract #5045 between the City of Cheyenne and Ayres Associates for preparation and submission of an Emergency Action Plan to the Wyoming State Engineer's Office for the city's Carey Reservoir as part of the Dry Creek - Sheridan Reach Flood Control Improvements Project (2007-2010 1% Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$18,605.00). (#5045)

[CA] Contract Modification #1 to Contract #5356 between the City of Cheyenne and S&S Builders, LLC for emergency repair of four inlets at East 11th Street and Fremont on the FY 2009 Inlet Repair Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$26,465.00). (#5356)

[CA] Contract Modification No. 2 to Contract No. 5321 between the City of Cheyenne, Parks & Recreation Department, and RECCO Inc. d/b/a Five-R Co. to allow for additional work and amenities at the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park (2007-2010 1% Sales Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Request for Proposal for a contract between the City of Cheyenne, Cheyenne Fire & Rescue Department and Noel Griffith & Associates, architect for professional services for conceptual fire station design, site assessment, program development, project budgeting and promotional services (2007-2010 Optional 1% Sales & Use Tax). Mr. Valdez moved to approve in an amount not to exceed \$63,480.00, seconded by Mr. Brown. Upon inquiry regarding a recent legal notice published in the newspaper referencing Cole Fire Addition, Frank Cole, developer, advised he did not have knowledge of the legal notice and that the notice could pertain to other properties within the Addition (not the City's fire station site off Dell Range), which also includes Wal-mart and Sam's Club properties. Motion carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne voting "no." (#5419)

[CA] Consideration of Bid #R-30-09 for furnishing 10,000 Recycle Refuse Carts for the City of Cheyenne Sanitation Department (Solid Waste Management Account). Motion (per Consent Agenda) carried (Otto Environmental Systems, Eloy, AZ; amount not to exceed \$456,100.00).

Consideration of Bid #R-29-09 for furnishing one new Rubber Tired Loader from Honnen Equipment of Mills, WY for the Sanitation Department. Mr. Valdez moved to accept the bid from Honnen Equipment in an amount not to exceed \$148,141.00, seconded by Mr. Spiker. Discussion followed on the number of bids received, bid specifications, recommended bid selection, and communication received from one of the bidders involving equipment specifications. Upon inquiry, Dennis Pino, Solid Waste Director, advised 3 bids were received and provided information relative to equipment specifications, the type of machinery the City uses and can provide maintenance for through

Fleet Maintenance, and loader bucket size and equipment safety features. Comments continued on discretionary factors involving the bid selection recommendation process, equipment cost, and suggestion of rejecting all bids and re-bidding for the equipment. Upon inquiry, Mr. Pino stated if all bids were rejected, this would set back utilization of the equipment by a month and they would have to reorganize the time frame for projects. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Pierson voting “no”.

[CA] Consideration of Bid #R-32-09 for furnishing one new cab & chassis with collection body, from Lariat International, Cheyenne for the Sanitation Department -- referred to Finance Committee.

[CA] Consideration of Bid #R-1-10 for furnishing one new truck with lube body, from Peterbilt of Wyoming, Cheyenne for Fleet Maintenance Department -- referred to Finance Committee.

[CA] Consideration of Bid #R-2-10 for furnishing one new cab & chassis truck from Peterbilt of Wyoming, Cheyenne for Forestry Department -- referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] Acknowledgment of the “2007 Cheyenne Greenway Extension 35% Design” report. Motion (per Cconsent Agenda) carried.

Announcement was made of the Appointment of James E. Elias as Public Works Director for the City of Cheyenne, to be confirmed July 27, 2009.

OTHER CITY BUSINESS:

John Fafoutakis commented on certain areas involving projected City revenue shortfalls; prioritization of projects, and past expenditures for certain projects, and expressed concerns with taser use by law enforcement officers nationwide and the U.S. justice system. During comments on taser use and the justice system, Mr. Brown raised a point of order that comments being made did not pertain to City business with Mayor Kaysen requesting Mr. Fafoutakis to bring his comments to conclusion.

Mr. Brown stated he had received communication from a constituent regarding a sanitation bill relative to fees assessed for the curbside recycling pilot program and that he would be reviewing the matter with Public Works staff.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:03 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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